

PROMOTION OF ACCESS TO INFORMATION ACT MANUAL

Section 51 Manual — Proaxis Solutions (Pty) Ltd

Field

Company Name
Registration Number
Information Officer
IO Registration Reference
Document Version
Effective Date
Next Review Date
Prepared By

⚠ **DISCLAIMER:** This manual was prepared with AI assistance and must be reviewed by a qualified attorney before submission to the Information Regulator or reliance in any legal proceeding. All statutory references must be verified against current South African legislation. This document does not constitute legal advice.

INTRODUCTION

This manual is compiled in accordance with **Section 51 of the Promotion of Access to Information Act 2 of 2000 (PAIA)** [VERIFY: current version including all amendments].

Section 51 requires every private body to compile a manual containing information prescribed by the Act to facilitate access to information held by that body.

Proaxis Solutions (Pty) Ltd is committed to transparency, accountability, and giving effect to the constitutional right of access to information as provided for in **Section 32 of the Constitution of the Republic of South Africa, 1996**.

PART 1 — CONTACT DETAILS OF THE INFORMATION OFFICER

All requests for access to records and all PAIA-related correspondence must be directed to the Information Officer at the details below.

Field

Detail

Name of Information Officer	Andile Khoza
IO Registration Reference	2025-058837
Physical Address	1 Shantally Close, Milarina Gardens, Durban, KwaZulu-Natal, South Africa
Postal Address	1 Shantally Close, Milarina Gardens, Durban, KwaZulu-Natal, South Africa
Telephone Number	066 213 6607
Email Address	willsonjohnny430@gmail.com [TO BE UPDATED: info@proxissolutions.co.za once active]
Website	www.proaxissolutions.co.za

Note on email address: The company is in the process of implementing a professional business email system. The email address above will be updated to info@proxissolutions.co.za as soon as the business email system is activated. This manual will be updated accordingly. The Information Regulator's records will also be updated when the business email address is operational.

PART 2 — GUIDE ON HOW TO USE PAIA

The South African Human Rights Commission (SAHRC) has compiled a guide on how to use PAIA as contemplated in Section 10 of the Act. This guide explains:

- The rights of access to information;
- How to submit a request for information;
- The grounds on which access may be refused;
- Remedies available to requestors.

This guide is available from the SAHRC at: [VERIFY: current SAHRC website URL and guide availability — www.sahrc.org.za]

The guide is also available from the Information Regulator of South Africa at: [VERIFY: current Information Regulator website — www.inforegulator.org.za]

Persons unable to read or write, or persons with disabilities, may contact the Information Officer to be assisted in formulating a request. [VERIFY: current PAIA provisions on assistance to requestors.]

PART 3 — DESCRIPTION OF RECORDS HELD

3.1 Records Available Without a Formal PAIA Request

The following records are publicly available and may be accessed without submitting a formal PAIA request:

Record	Where Available
Certificate of Incorporation	Available from CIPC (www.cipc.co.za) on request
PAIA Manual (this document)	Published on the company website: www.proaxisolutions.co.za
Privacy Notice / POPIA Notice	Published on the company website: www.proaxisolutions.co.za
B-BBEE Status Certificate / Affidavit	Available on request; uploaded on the Central Supplier Database (CSD)
Company registration details	Available from CIPC

3.2 Records Held by Proaxis Solutions — Subject to Formal PAIA Request

The following categories of records are held by Proaxis Solutions (Pty) Ltd and may be requested under PAIA, subject to the grounds for refusal set out in Part 5 of this manual.

3.2.1 Corporate and Statutory Records

Category	Type of Records
Company formation	Memorandum of Incorporation (MOI), Certificate of Incorporation
Ownership	Securities register (share register), register of beneficial owners
Directors	Director register, director resolutions
CIPC filings	Annual return records, registered information
Resolutions	Director resolutions, company resolutions

3.2.2 Financial Records

Category
Annual financial statements
Tax records
Banking records
Invoices
Expense records

3.2.3 Client and Contract Records

Category
Client agreements
Project records
Correspondence

Proposals

3.2.4 Human Resources Records (When Applicable)

Category	Type of Records
Employment records	Employment contracts, written particulars of employment
Payroll records	Remuneration records, payslips (when employees are engaged)
Leave records	Leave requests and approvals
Disciplinary records	Warnings, disciplinary proceedings

Note: Proaxis Solutions currently has no employees. These records will be maintained when staff are engaged.

3.2.5 Technology and Data Records

Category	Type of Records
System logs	Access logs, system activity records
Data processing records	Records of personal information processing activities
Security records	Incident logs, data breach records
Software documentation	System design documents, technical specifications

3.2.6 Compliance and Governance Records

Category	Type of Records
PAIA compliance	This manual, PAIA request register
POPIA compliance	POPIA Policy, Privacy Notice, Data Processing Register
Information Officer register	Log of all PAIA and POPIA requests
Audit records	Internal compliance audits
Regulatory correspondence	Correspondence with the Information Regulator, SARS, CIPC

3.2.7 Supplier and Tender Records

Category	Type of Records
CSD registration	CSD profile records
Tender documentation	Submitted tenders, bid documents
B-BBEE documentation	EME certificates, sworn affidavits
Supplier agreements	Agreements with technology suppliers and service providers

PART 4 — REQUEST PROCEDURE

4.1 How to Submit a Request

Any person may request access to records held by Proaxis Solutions (Pty) Ltd by submitting a request to the Information Officer in the following ways:

Option A — Prescribed Form C Submit a completed Form C as prescribed under the PAIA Regulations. [VERIFY: current Form C and Regulation reference — available from the Information Regulator at www.inforegulator.org.za]

Option B — Written Request Submit a written request addressed to the Information Officer at the contact details in Part 1 of this manual. The written request must include:

1. The requestor's full name, contact details, and postal/email address for delivery of the response;
2. A description of the record(s) requested (with as much detail as possible to enable identification of the record);
3. The form in which the requestor wishes to receive access (e.g., inspection, photocopy, electronic copy);
4. If the requestor is making the request on behalf of another person, proof of that authority.

4.2 Access Fees

Access fees are payable as prescribed under the PAIA Regulations. [VERIFY: current prescribed fees via the Information Regulator. Fees are typically set by regulation and are subject to change.]

Note: Proaxis Solutions reserves the right to request payment of any applicable reproduction and access fees before providing access to records, in accordance with the prescribed fee schedule.

4.3 Response Timelines

Proaxis Solutions will respond to a request for access to information within the timeframes prescribed by PAIA. [VERIFY: current prescribed response periods — typically 30 days from receipt of the request, with possible extension of a further 30 days in prescribed circumstances.]

The Information Officer will:

1. Acknowledge receipt of the request;
 2. Notify the requestor of any applicable access fee;
 3. Decide whether to grant or refuse the request;
 4. Notify the requestor in writing of the decision and the reasons for it (if refused).
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PART 5 — GROUNDS FOR REFUSAL OF ACCESS

Access to records may be refused on the grounds set out in Chapter 4 of PAIA. [VERIFY: current provisions.] These grounds include, but are not limited to:

Ground	Description
Protection of personal information of third parties	Where disclosure would unreasonably disclose personal information of a third party
Protection of commercial information	Where records contain trade secrets or confidential commercial information
Protection of safety of individuals	Where disclosure could endanger the life or safety of any person
Protection of privileged legal communications	Legally privileged communications with an attorney
Protection of research information	Premature disclosure of unpublished research
Records not held	Where the record does not exist or is not held by Proaxis Solutions
Manifestly frivolous or vexatious requests	Requests made in bad faith or to harass

Where access is refused, the Information Officer will provide written reasons for the refusal, referencing the applicable PAIA provision.

PART 6 — REMEDIES IF ACCESS IS REFUSED

If a requestor is not satisfied with Proaxis Solutions' decision, the following remedies are available:

6.1 Internal Appeal There is no internal appeal mechanism prescribed for private bodies under PAIA. Proaxis Solutions will accept and consider any written representation from a requestor who believes a decision was made in error.

6.2 Application to the Information Regulator A requestor may lodge a complaint with the Information Regulator of South Africa if they believe their request has been improperly refused. [VERIFY: current Information Regulator complaint procedure and contact details — www.inforegulator.org.za]

6.3 Court Application A requestor may approach a court with jurisdiction to review the decision to refuse access, in accordance with PAIA. [VERIFY: current PAIA court application provisions.]

PART 7 — PAIA AND POPIA CROSS-REFERENCE

Proaxis Solutions processes personal information in accordance with the **Protection of Personal Information Act 4 of 2013 (POPIA)**. The company's Privacy Notice and POPIA Policy are published on the company website at www.proaxissolutions.co.za.

Where a request for access to information relates to personal information about the requestor, such requests may be processed under both PAIA and POPIA as applicable.

The Information Officer (Reference: 2025-058837) is responsible for all requests under both PAIA and POPIA.

PART 8 — ANNUAL REVIEW AND UPDATES

This manual will be reviewed and updated annually, or sooner if required by changes in:

- South African legislation;
- Information Regulator requirements;
- The company's records structure or contact details;
- The appointment of a new Information Officer.

Review Item	Status
Next annual review	June 2027
Business email update (replace Gmail)	Upon activation of info@proaxissolutions.co.za
Information Regulator records update	Upon activation of business email

PART 9 — INFORMATION REGULATOR CONTACT DETAILS

The Information Regulator of South Africa may be contacted at:

[VERIFY: current Information Regulator contact details — www.inforegulator.org.za]

Matters related to the PAIA Annual Report and Section 51 manual submissions should be directed to the Information Regulator.

DECLARATION

This PAIA Section 51 Manual is adopted by Proaxis Solutions (Pty) Ltd as the company's official PAIA manual.

Field	Detail
Director	Bongumusa Mthembu [VERIFY: confirm full legal name against CIPC records]

Registration Number	2025/542019/07
Information Officer	Andile Khoza
IO Reference	2025-058837
Date Adopted	June 2026
Signature (Director)	_____
Date	_____

Proaxis Solutions (Pty) Ltd | Reg: 2025/542019/07 | IO Reference: 2025-058837
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